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[00:15:33] The House will come to order. Members, please take your seats. Head page. The House is now in session. All persons not entitled to privileges of the floor, please retire to the gallery.

[00:15:49] The members will rise and be led in prayer by Reverend Ashley Goff, Arlington Presbyterian Church, and remain standing for the pleasure of allegiance to the flag of the United States of America, which will be led by the delegate from Alexandria, Delegate Herring. Thank you. Let us pray.

[00:16:10] Holy One, source of wisdom formed long before this Commonwealth, Present in the work unfolding before us, we gather on the homeland of the Powhatan people, on land impacted by the labor and suffering of those who were enslaved and by the ongoing hopes of those still striving to be fully free. In this place of lawmaking and listening among delegates elected from every corner of Virginia's hills and coastlines, cities, counties, and rural roads,

[00:16:48] We ask for a spirit wide enough to hold disagreement and steady enough to sustain the work that democracy requires. Hold before these servants of the people that democracy is not abstract. It lives in classrooms and kitchens, courtrooms and clinics, in paychecks, housing, rivers, and workplaces.

[00:17:13] Keep before us the safety of our neighborhoods, where belonging should never depend on paperwork, accent, or silence. Attend to those, Holy One, who live with the daily fear that a knock, a stop,

or a uniform could unravel their lives.

[00:17:31] In that awareness, disrupt the stories we cling to when they fail to tell the whole truth. Loosen the grip of certainty when it constricts the work of governing and weakens the practice of democracy. Holy One, give our delegates the courage to notice who bears the weight of their votes and who is too often unseen when decisions are made.

[00:17:56] Strengthen this body politic with integrity that does not waver and humility that remains teachable. Holy One, again and again, you call leaders to govern not for power's sake, but for the common good, for the people and the land entrusted to them.

[00:18:12] May our Commonwealth's budget and legislation tell a clear story about what our Commonwealth values. Care over neglect, repair over harm, and community over isolation. May they reflect what it means to be a neighbor, to show up, to share responsibility, and to have one another's backs.

[00:18:33] Root this chamber's work in justice, season it with imagination, and guide it with empathy. We offer this prayer, trusting that we belong to you, and therefore, to one another. Amen.

[00:19:00] House will come to order.

[00:19:16] The members will answer the roll call by indicating their presence on the electronic voting board.

[00:19:30] Clerk will close the roll. Mr. Speaker, quorum is present. So at the House Rule 3, I have examined and approved the Journal of House of Delegates for January 28, 2025. Motions and resolutions under Rule 39 pursuant to the provisions of Rule 40 are now in order. Does the clerk have any announcements or communications?

[00:19:45] No communication. Simple announcement. There is a supplemental calendar, number one. Several bills have been referred for informational purposes available to the public and to the members here. With that, Ms. Speaker, in this first portion of the morning, our speaker requests that you use pursuant to House Rule 40, your request to speak button for the mentioned listed items up on the voting board.

[00:20:03] Delegate from Arlington, Delegate Lopez. Thank you, Mr. Speaker. I rise for an introduction. Delegate, ask the floor. - Thank you, Mr. Speaker. Mr. Speaker, today we were joined by Reverend Ashley Goff, who just provided a wonderful invocation for us today. Reverend Goff has served as pastor of Arlington Presbyterian Church since 2018.

[00:20:22] She lives with her family in Arlington's Green Valley neighborhood and also serves as the chaplain with the Arlington County Fire Department. Beyond this service to Arlington Presbyterian and our first responders, Reverend Goff and her congregation have acted as true servants in our community, especially in helping the needy and marginalized.

[00:20:39] One story, in 2016, under her leadership, the congregation made the decision to sell the church property to the True Ground Housing Partners, leading to the creation of Gilliam Place, a mixed-use affordable housing community on Columbia Pike, which is the spine of the 3rd District. Today, Gilliam Place provides 173 affordable homes for Arlington neighbors in the heart of the 3rd District, as well as a new worship space for the church. Mr. Speaker, I am incredibly grateful for the work Reverend Goff has done for Virginians in my community, and I humbly request that my

[00:21:09] colleagues join me in extending a warm house welcome. Welcome. Welcome to the Capitol today.

[00:21:28] The Delegate from Winchester, Delegate Wiley. Thank you, Mr. Speaker. I rise for introduction. Delegate has the floor. Thank you, Mr. Speaker. It's my pleasure to introduce the Blue Ridge Association of Realtors. If they will please stand. These professionals represent communities across the Shenandoah Valley and work every day to promote home ownership, protect private property rights, and support a strong Virginia housing market. We are grateful for their engagement here at the Capitol, and for their continued partnership through RPAC and Realtor Advocacy.

[00:21:58] Please join me and welcome the Blue Ridge Association of Realtors. Welcome, welcome to the Capitol today. Delegate from Spotsylvania, Delegate Nicole Cole.

[00:22:17] Good morning, Mr. Speaker. I rise for two motions. Delegate has the floor. Thank you, Mr. Speaker. For my first motion, I move that the House take up out of order, H.J.R. 55 on page 12 of today's calendar.

[00:22:33] Kirk will report a resolution. House Joint Resolution No. 55, celebrating the life of Anthony L. Bennett, Sr. Would you like to speak to the motion? Yes. Delegate, answer the floor. Mr. Speaker, I move the adoption of the resolution, and I request to speak to that motion.

[00:22:49] Delegate, answer the floor. Thank you, Mr. Speaker. House Joint Resolution No. 55 celebrates the life of Anthony L. Bennett, Sr. Mr. Bennett was a respected businessman, educator, and community leader in Virginia, and a beacon to the Fredericksburg, Spotsylvania, and Caroline communities.

[00:23:09] Mr. Bennett was also a graduate of Virginia State University. He had a generous spirit and a commitment to serving that left a lasting impression on all who were blessed to meet him. He had a lifelong calling to serve others. He channeled that calling by founding the A.L. Bennett & Son Funeral Home, which began in the notable Black Business District on Princess Anne Street in Fredericksburg, and continued to his current location in Spotsylvania.

[00:23:35] Bennett Funeral Home has proudly served the 65th and 66th District for 50 years. In addition to serving his community in times of need as a funeral director, Mr. Bennett was a dedicated educator, working as a school teacher in Stafford Middle School and A.G. Wright Middle School.

[00:23:55] He extended his commitment to public service by serving as chairman of the Fredericksburg City School Board for multiple years, During his school board tenure from 1993 to 2007, he was instrumental in establishing new schools, including Walker Grant, Lafayette Middle School, and James Monroe High School.

[00:24:14] Mr. Bennett was a pivotal figure in local black history in Fredericksburg, and took great pride in the community as a member of the Tower Row Chapter of Omega Psi Phi Fraternity, Epsilon Roe Boulay, and the Prince Hall Masons. Mr. Bennett's legacy lives on in the lives he touched and the community he strengthened and the example he set for all to follow.

[00:24:37] He will be remembered with gratitude, respect, and deep appreciation. Now, Mr. Speaker, for my second motion. - We need to pass this motion first. - Sorry. - The delegate from Spotsylvania, Delegate Nicole Coles moves that we pass House Joint Resolution No. 55, celebrating the life of Anthony L. Bennett, Sr. All those in favor shall rise.

[00:25:00] The motion is adopted. The delegate from Spotsylvania. Delegate Coles. - Thank you, Mr. Speaker. Now, Mr. Speaker, for my second motion. Mr. Speaker, on behalf of myself and the delegate from Fredericksburg, Delegate Joshua Cole, I move that when the House adjourns today, it adjourns in the honor and memory of Mr. Anthony L. Bennett, Sr.

[00:25:26] The delegate from Spotsylvania, Delegate Cole, moves that when the House adjourns today, it do so in the honor and memory of Anthony L. Bennett, Sr. All those in favor shall rise. Motion is agreed to.

[00:25:44] Delegate from Prince William, Delegate Guzman. Thank you, Mr. Speaker. I rise for an introduction. The delegate has the floor. Thank you, Mr. Speaker. Today in the chamber, we have Dreamers Mother in Action, DIMIA, and the National Domestic Workers Alliance.

[00:26:02] I would invite them to stand, por favor, si se ponen de pie. Gracias. Thank you, Mr. Speaker. DIMIA, a Virginia-based grassroots organization founded by immigrant women who came together from across the state to defend their rights and those of their families and communities.

[00:26:26] They work to advocate for policies that promote fair labor policies for domestic and care workers, build community power by encouraging civic participation and community leadership, defend immigrants' rights, and push for equitable access to essential resources.

[00:26:43] Today, we recognize EMEA for their tireless work uplifting immigrants and their families across the Commonwealth. We also have with us in the chamber National Domestic Workers Alliance, which was founded in 2007 by organizers and worker leaders representing nannies, house cleaners, and care workers.

[00:27:06] Today, it is an alliance of more than 76 organizations across 22 states, representing 395,000 domestic workers nationwide, to include the over 60,000 care providers here in the Commonwealth.

[00:27:23] the support of the national domestic workers alliance and many of us in this chamber virginia became the 10th state and the first in the south to pass the domestic workers bill of rights which protects domestic workers in virginia from discrimination harassment and unsafe working conditions the national domestic workers alliance is dedicated to organizing women of color and building a coalition to make change. They are fighting for policies that value the work and care domestic workers provide to our families and loved ones. Mr. Speaker, I would ask members

[00:28:02] of this body to give a warm House welcome to the MIA and the National Domestic Workers Alliance. Welcome. Welcome to the Capitol today. Delegate from Fredericksburg, Delegate Josh Cope.

[00:28:26] Thank you, Mr. Speaker. I rise for a purpose of a motion. Delegate has the floor. Thank you, Mr. Speaker. I move that the House take up out of order, House Joint Resolution 91. Clerk will report a resolution.

[00:28:41] House Joint Resolution No. 91, celebrating the life of Gladys May West. Mr. Speaker, I move the adoption of the resolution. The delegate from Fredericksburg moves that the House adopt House Joint Resolution No. 91, celebrating the life of Gladys May West.

[00:28:59] All those in favor shall please rise. The motion is adopted. Delegate from Albemarle, Delegate Coulson. Thank you, Mr. Speaker. I rise for the purpose of two introductions.

[00:29:19] The delegate has the floor. Thank you. Mr. Speaker, in the gallery today, we have representatives from the Nursing Advocacy Initiative at the University of Virginia. I ask for them to please

rise at this time. The Nursing Advocacy Initiative is a first-of-its-kind hospital-based program that empowers nurses to engage directly with legislators in order to influence positive change.

[00:29:42] The initiative is entirely nurse-led, and after completing their advocacy training, participating nurses, like the ones up there, known as nurse ambassadors, come and engage in nonpartisan, issue-focused advocacy aimed at improving health care. They're good at what they do, and last year, the Nursing Advocacy Initiative received national recognition for its work-advancing nurse leadership.

[00:30:03] Today is their Advocacy Day. I hope many of you had the chance to meet them. I am grateful for their leadership and service, and I request that the members join me in extending them a warm house welcome.

[00:30:22] Welcome. Welcome to the Capitol today. Mr. Speaker, for my second introduction in the gallery today, we have staff and leaders of nonprofit organizations and foundations from across Virginia for Nonprofit Advocacy Day. I ask that they please rise. So this day was organized by the Center for Nonprofit Excellence, headquartered in my beautiful district, Charlottesville, but also brings together Dan River Nonprofit Network and members of the Virginia Funders Network.

[00:30:50] Nonprofit Advocacy Day facilitates connection and education on the essential services nonprofits provide to our communities in every region of our Commonwealth. They play an important role in our economy, employing a quarter of our public service employees. You can learn more about the impact that nonprofits have on our economy by assessing the Center for Nonprofit Excellence report that was released today and is available on their website.

[00:31:13] We are so happy that nonprofits are here today to share about their great work. I know I'm thankful for the work that they do, and I'm grateful that they're helping us better understand all the various ways that they help citizens across our great Virginia. I request that the members join me in extending a warm house welcome.

[00:31:32] Welcome. Welcome to the Capitol today. The delegate from Fairfax, Delegate Sullivan. Thank you, Mr. Speaker, I rise for the motion. Delegate has the floor.

[00:31:48] Speaker, I move that the House take up out of order H.R. 44 on page 36 of today's calendar. Clerk will report a resolution. Ms. Speaker, House Resolution No. 44, celebrating the life of Deborah R. Jackson.

[00:32:11] It's now before the body. Mr. Speaker, I move adoption of the motion, of the resolution, excuse me. Delegate from Fairfax, Delegate Sullivan moves that the House adopt House Resolution 44, celebrating the life of Debra R. Jackson. All those in favor of the motion shall please rise.

[00:32:44] The motion is adopted. Delegate from Warnoak City, Delegate Rasul. Thank you, Mr. Speaker. I rise for the purpose of two announcements. Delegate has the floor. Thank you, Mr. Speaker, ladies and gentlemen of the House. It's that time of year again where we prepare to take on our biggest rival, the Senate. Boo. Yes. The annual Capitol Classic is going to be February 23rd. We will try to retake the trophy from a former football player who broke someone's nose in one of these

[00:33:23] games. We, of course, do it not only to defeat the Senate, but to raise money for a great cause, the Massey Cancer Classic and VCU's Massey Cancer Comprehensive Research Center has helped so many people who are near and dear to our hearts. They're celebrating their 50th anniversary.

[00:33:44] And for that, we certainly wish them well. Our basketball game is not only a heated competition between the House and Senate, but it gives us an opportunity to reinvest in something that's given so much to the Commonwealth. So I hope that you will save the date, February 23rd.

[00:34:02] We will also be having regular practices, which is fancy for pickup basketball games, where we'll try not to get injured, Tuesday nights at 7. So you can see my office if you'd like to play in the game, if you'd like to be in the practice. And then we'll also, between myself and our general manager, Delegate McQuinn, be shaking you down for some money here soon.

[00:34:24] Thank you so much. And Mr. Speaker, for my second announcement. Before you get to your second announcement, you said he broke somebody's nose and you want people to play. Okay, go ahead. I guess they are delegates, so you may be able to get them to play. Go ahead. That was none other than Senator Rouse, who plays basketball like a football player, Mr. Speaker.

[00:34:45] For the second announcement, as co-chair of the Legislative Rule Caucus, I'm pleased to announce our second meeting that will be this evening at 5 p.m. We are going to be joined on the 10th floor by none other than His Excellency, the Speaker of the House of Delegates, the Honorable Don Scott.

[00:35:08] We will also have the Secretary of Health, Marvin Figueroa, and Secretary of Education, Mr. Smith. We hope you can join us for the meeting this evening. Thank you, Mr. Speaker. The delegate from Fairfax, Delegate Simon. Thank you, Mr. Speaker.

[00:35:24] I rise for two introductions. Of course you do. The delegate has the floor. Mr. Speaker, first I want to start with, we are joined in the gallery with some student volunteers from a 501c3 nonprofit, Sing for Smiles, if they're in the gallery, if they could please rise so we can see you all.

[00:35:40] Sing for Smiles volunteers are using the healing power of music to bring joy, connection, and meaningful engagement to seniors living in retirement homes in memory care facilities. They host monthly events at these facilities with live music, music-based games, and Sing for Smiles' signature Senior Prom to share familiar songs and create meaningful moments of connection and comfort for seniors who may be isolated or facing cognitive challenges.

[00:36:04] Recognized throughout Northern Virginia for its impact, Sing for Smiles now operates in four senior homes and brings together volunteers from five high schools from Fairfax County. It'll be the pleasure of the body to give them a warm house welcome.

[00:36:23] - Welcome, welcome to the Capitol today. speaker for my second introduction. Mr. Speaker, we're joined today in the Capitol. You've probably seen these folks running around. They're realtors, it seems like, everywhere. But we've got representatives from the greatest association of realtors in the Commonwealth, the Northern Virginia Association of Realtors, joining us in the Capitol today. They're represented by members of their leadership team and the 2026 Leadership Institute, if they please rise. Again, 110 realtors from across Northern Virginia have traveled to Richmond for this year's Realtor Lobby Day to advocate for homeowners, renters, and communities. Established in 1921, NVR is the largest regional association of realtors and is the leading voice for real estate in northern

[00:37:00] Virginia and beyond. The association provides industry education, promotes legal and professional standards enforcement and fair housing practices among its members, while protecting the ability of Virginians to achieve the American dream of homeownership. Again, with more than 13,000

members, NVR serves a region of over 2.5 million residents, generating $14.7 billion in real estate transactions in 2025. Again, I hope you have the pleasure of the body to give them a warm house

[00:37:26] Welcome. Welcome. Welcome to the Capitol today. Delegate from James City County, Delegate Anderson. Thank you, Mr. Speaker. Ms. Speaker, I rise for an introduction. Delegate has the floor.

[00:37:45] Thank you, Mr. Speaker. Mr. Speaker, students from William & Mary University, let me get that right, have joined us in the gallery today for their 29th Annual Road to Richmond trip, and I ask them to please stand. Founded in 1693 by a royal charter, William & Mary has led the nation in its liberal arts education program and distinguished itself as an elite public research university.

[00:38:10] Alumni such as Thomas Jefferson, John Tyler, George Washington, James Monroe, and of course, our own clerk, Paul Nardo, have gone on to shape the world with transformative experiences William & Mary provided them.

[00:38:30] As the second oldest institution of higher learning in the United States, William & Mary is woven in the fabric of this country and commonwealth. And the university will continue to cement its legacy of academics and beyond as it celebrates its 333rd year of its charter next Friday.

[00:38:47] I hope you will join me in giving these William & Mary students a warm house welcome. Welcome. Welcome to the Capitol today.

[00:39:04] Jefferson and Norto. Okay. The delegate from Arlington, Delegate McClure. Thank you, Mr. Speaker. Mr. Speaker, I rise for the purpose of an introduction. The delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, joining us in the gallery today are the Allies for Housing Action Coalition.

[00:39:21] And if they could please rise. They are here visiting the Capitol today to meet with members throughout the General Assembly to share the stories and challenges of renters from across the Commonwealth to advocate for tenants' rights and protections. With more than 20 member organizations, Allies for Housing Action Coalition is Virginia's only statewide coalition focused on legislating renters' rights.

[00:39:42] One in three Virginians are renters, including myself, and it is coalitions such as Allies for Housing Action that are at the forefront of the focusing on real lived experiences of families from across the Commonwealth, and their work reminds us that stable housing is the foundation for opportunity, dignity, and strong communities.

[00:40:01] Mr. Speaker, I hope it is the pleasure of the body to offer these advocates from Allies for Housing Action Coalition a very warm house welcome.

[00:40:16] Welcome. Welcome to the Capitol today. Pursuit to House Route 30, the journal, shall reflect that the following members are away on pressing personal business. I'm going to grant a lead from today's session, Delegate Knight. Mr. Speaker, the second portion of the morning hour is reserved for member requests to move legislation from any uncontested calendar to the regular calendar.

[00:40:38] There are three in the calendars, pages 10 and 11, the three bills in that uncontested second category, Delegate Moorfields, HB 62, Delegate Ballers, HB 98, and Delegate Ballers, HB 657.

[00:40:54] Those are all out of the block and moved over to the regular calendar. Clerk will announce the next order. Third portion of the morning hour is reserved for member requests for legislation to go by for the day. I'm a speaker. I'm not aware of any such requests. Clerk will announce the next order. And the

fourth and final portion of the morning hour is reserved for member requests for points of personal privilege. Clerk will call a calendar. Calendar for today, Thursday, January 29, 2026.

[00:41:14] Approximately 30 pieces of legislation beginning page 1, first category. House bills on third reading, uncontested calendar. The bills in the block are as follows. House Bill 63, House Bill 135, House Bill 248, House Bill 347, House Bill 349, House Bill 454, House Bill 455, House Bill 655, House Bill 726.

[00:41:40] And rounding out the block, third reading uncontested calendar is House Bill 764. Shall the bills pass? Clerk will close the roll.

[00:41:57] Ayes 99, noes 0. Ayes 99, noes 0. The bills passed. Continuing with today's calendar, page 5 if you're following along that way, there are 16 bills in this category, beginning with House Bill 80, legislation relating to civilian deaths in custody, failure to comply with annual report, funding for local and regional adult correctional facilities.

[00:42:24] Delegate from Ackermack, Delegate Bloxham.

[00:42:36] Thank you, Mr. Speaker. Speaking to the bill. Delegate has the floor. I spoke with the patron earlier today, and my only real issue, I think this is a fine bill, but I think it's the first time I can remember that in code we're giving the governor authority to spend money or withhold money.

[00:42:59] I've seen it done in Chapter 4. I know that we can do that through the budget. That's a temporary two-year solution. But this is actually putting it in code where the governor can withhold money. I think it's a bad precedent.

[00:43:17] I know it's a very narrow exception on this particular case, but I think it's a precedent that we shouldn't go down. I hope we do not vote for the bill. The delegate from Newport News, Delegate Price. Yes, thank you, Mr. Speaker. Speaking to the bill. The delegate has the floor. Thank you. If you'll remember, Mr. Speaker, this is encompassing lots of different entities.

[00:43:36] So this is asking for deaths in custody reporting. And so that goes from the first moment of detainment from when a person interacts with law enforcement and if they should be incarcerated, whether it's the local and regional jail or DOC.

[00:43:55] Because all of those entities are involved, all three are supposed to report. And if they don't, they need incentive to make sure that they do it. So you have funding mechanisms for all three that exist in different places. The comptroller is who handles the money for one of those entities.

[00:44:15] The governor is over that. So in order to include all three entities, this is how it needs to be written. And I hope that you would want the information and the transparency for the deaths that happen while residents are in the custody of people who are paid for with tax dollars.

[00:44:33] And I hope you'll support this bill. Shall the bill pass? Clerk will close the roll.

[00:44:50] Ayes, 64. Nose, 35. Ayes 64, noes 35. The bill passes. House Bill 101 relates to applications for concealed handgun permits. Shall the bill pass? Clerk will close the roll.

[00:45:19] Ayes 98, noes 1. Ayes 98, noes 1. The bill passes. Next up is House Bill 153 relating to siting of data centers, site assessment, high energy use facility. Shall the bill pass? Clerk will close the roll.

[00:45:47] Ayes 90, noes 7. Ayes 90, noes 7. The bill passes. Turning to page 6, the calendar continuing, third reading, regular calendar. Next up is House Bill 164, related to housing for local employees, grants

for home ownership. Shall the bill pass?

[00:46:10] Clerk will close the roll. Ayes 65, noes 32. Ayes 65, noes 32, the bill passes. House Bill 168, relating to election of certain governing bodies, conversion to single-member districts. Shall the bill pass?

[00:46:33] Clerk will close the roll. Ayes 75, noes 24. Ayes 75, noes 24. The bill passes. House Bill 249, related to Marcus Alert System, External Database Information Removal.

[00:46:51] Shall the bill pass? Clerk will close the roll. Ayes 93, noes 5. Ayes 93, noes 5. The bill passes. Up to page 7, House Bill 352, related to Local Authority, Affordable Housing Performance Grant Program.

[00:47:14] Shall the bill pass? Clerk will close the roll. Ayes 78, noes 21. Ayes 78, noes 21. The bill passes.

[00:47:30] House Bill 552, which provides a charter for the city of Williamsburg relating to elections, finance director, and city budget. Shall the bill pass? Clerk will close the roll.

[00:47:52] Ayes 94, noes 4. Ayes 94, noes 4. The bill passes. House Bill 612, relating to marriage between two adult persons, repeal of same-sex marriage prohibition. Shall the bill pass? Clerk will close the roll.

[00:48:16] Ayes 66, noes 32. Ayes 66, noes 32. The bill passes. Page 8, next up, House Bill 781 relating to fundamental right to reproductive freedom. Delegate from Patrick County, Delegate Williams. Speaking to the bill.

[00:48:32] Delegate, ask the floor. Mr. Speaker, I've listened to the arguments on the other side of the aisle on this. I've heard the pro-choice rhetoric. I've heard the slogans. And now I'd like to talk about the words that are actually written on both of this amendment and the ballot question.

[00:48:52] The specific words, the specific language that we are asking voters to enshrine in the Constitution of Virginia forever, unlike that pesky redistricting amendment, which is only for five years. Weird. Anyway, just like the redistricting amendment, I believe Virginians deserve to understand what this abortion amendment actually does, as compared to what the ballot question presented to us today says.

[00:49:16] This amendment extends constitutional immunity to unlicensed providers of any goods or services aiding or assisting another's exercise of their reproductive freedom. Yes, each one of us here would be given constitutional amendment or constitutional immunity from prosecution should we aid or assist in an abortion.

[00:49:43] I'm certainly not qualified to do so. perhaps some of our medical professionals here are. Either way, we're all covered. Should something go wrong, we cannot be penalized or prosecuted at all. The language is pretty straightforward on this. Quote, the Commonwealth shall not penalize, prosecute, or otherwise take adverse action against any individual for aiding or assisting in the exercise of this right. Any individual. This presents a major problem I think that my colleagues would want to address before

[00:50:18] sending this language to the voters. Any individual can also include those who are looking to do harm to others, right? I know this is shocking, but think for a second. This amendment treats a board certified OBGYN performing an abortion in a sterile medical facility the same as a child sex predator with no medical training, performing one on a minor in his mother's basement.

[00:50:51] Same immunity, same constitutional protection, no distinction, identical. My colleagues need to explain why this is the language that was chosen. You can protect reproductive freedom without immunizing predators.

[00:51:12] Those two things don't conflict unless you write a constitutional amendment that makes them conflict. Why go forward on this rushed amendment when there are such obvious flaws? Is this political expediency or are we trying to get this right?

[00:51:30] Let's talk about the ballot question. My favorite topic this session, you wrote an amendment that immunizes any individual who aids or assists in the exercise of another's reproductive freedom. Then you wrote a ballot question that tells voters this, quote, protects doctors, nurses, and patients.

[00:51:52] I guess you could have said doctors, nurses, and patients, et cetera, or you could say the more accurate version, which would be this protects any individual. That's what the amendment says, right? So it's kind of humorous that you would use more words to describe what could have just been left as it is written in the amendment, but maybe you didn't like how that sounded.

[00:52:18] Voters reading this ballot question will think they're protecting medical professionals who are providing legitimate care. They won't know they're also immunizing predators, will they? They won't know they're stripping Virginia of the ability to prosecute someone who recklessly conducts, whose reckless conduct causes a woman's injury or death.

[00:52:42] Virginia won't be able to enforce medical facility safety rules and regulations protecting patients seeking care in this field. They won't be able to hold manufacturers liable for medical devices that cause pain and suffering to our citizens. They won't be able to really hold anyone or anything accountable when aiding or assisting in any form of exercise of said right to reproductive freedom.

[00:53:09] This leaves zero accountability, which means zero protection for the very people you are seeking to protect. Surely this is not the intent of the amendment. If the other side of the aisle really believed this language defensible, if they believed Virginians would support absolute immunity of any individual, licensed or not, qualified or not, you would have put that ballot question of this on the next November election, right?

[00:53:42] So why hide this? Why cover this up? At this point, all we can assume is that they chose to write any individual, and they chose to write aiding or assisting without limitation. And they chose to provide absolute immunity with no exceptions for unlicensed conduct, no exceptions for reckless conduct, no exceptions for conduct that kills.

[00:54:09] And they clearly continue to believe that this is the right language to put to the voters, since I don't see any floor amendments here today. If my colleagues want to defend this deadly flaw, let them defend it honestly here today. Let them stand on this floor and tell Virginia that they believe a child sex predator who causes a teenage girl's death performing an abortion deserves constitutional immunity.

[00:54:41] Let them say it plainly here today, because that's what this amendment does. And the people of Virginia should know before it is enshrined in our Constitution. I urge my colleagues to reject this amendment, and I urge you to vote no.

[00:55:04] Delegate from Alexandria, Delegate Herring. Thank you Mr. Speaker. Speaking to the bill. Delegate has the floor. Mr. Speaker it's interesting that the delegate started off talking about slogans and everything that's political. What he ignores Mr. Speaker is that on this house floor your members introduce abortion bans. The same ones that are happening down south and women are dying. Exact same ones. That's why this constitutional amendment was introduced. Mr. Speaker, I think the delegate does not understand

[00:55:44] the process for having language on the ballot. There are requirements by the Virginia Code to make sure people understand what they're voting for. Yes, you need to look at the constitutional amendment. We have restrictions, Mr. Speaker, and to suggest that any member of this body would support what he just described as just outrageous. Mr. Speaker, our laws are our laws, and they stay in place, but it provides protection for our current law that is in place right now.

[00:56:22] Mr. Speaker, the VA under the Trump administration has already passed some regulations, some laws, some something, and then dark of night on New Year's Eve to restrict access to abortions.

[00:56:40] This is serious, and ultimately, Mr. Speaker, it's going to go to the voters, and that's what we're going to do. We are going to leave it to the voters to decide whether an individual has the privacy and the protection to have reproductive health care.

[00:56:59] And let me remind everybody that this is not just about abortion. It's about access to birth control, which the prior administration vetoed Delegate Price's bill to protect access to contraception. And you've heard her sit here and stand here and tell you all over and over why contraception is important.

[00:57:19] Not only does it prevent a pregnancy, but it is used for other things, other ailments. And pregnancy is not an ailment, but it just due treatment. Mr. Speaker, we have witnessed so much in this nation when it comes to restrictions of abortion.

[00:57:40] And I ask that this body pass this bill. House to come to order.

[00:57:58] Shall the bill pass?

[00:58:09] Truck will close the row. Ayes, 64, noes, 35. Ayes, 64, noes, 35. The bill passes.

[00:58:28] Speaker, I ask we're going to pause here briefly and go back to the fourth portion of the morning hour for a center aisle reduction. The delegate from Tazewell, Delegate Moorfield. Mr. Speaker, thank you. I rise for a request for permission to take the center aisle for a presentation.

[00:58:46] The delegate has permission to take the center aisle. Thank you, Mr. Speaker. And for all of you who are fans of Major League Baseball player Billy Wagner, I ask you to join me. And, Mr. Speaker, I know that you would like to join us. You're a big fan, but you've got to preside over the House. Dang.

[00:59:04] Sturko, report a resolution.

[00:59:34] Ms. Speaker, Senate Joint Resolution No. 323 from the 2025 session commending Billy Wagner was agreed to by the Senate and subsequently by the House on February 10, 2025. That resolution has been adopted. Delegate from Tazewell, Delegate Moorfield.

[00:59:51] Thank you, Mr. Speaker. Members of the House, whereas Billy Wagner is a Virginia legend through and through, a native of Marion who grew up in Tannersville in Tazewell County, who built a reputation as one of the greatest closers in history of Major League Baseball over his 16-year professional career.

[01:00:09] Whereas Billy Wagner was selected for induction into the National Baseball Hall of Fame by the Baseball Writers Association of America in 2025. Whereas Billy Wagner was a standout on the Tazewell High School team and played from 1991 to 1993 at Ferrum College, where he posted a 17-3 record and achieved a National Collegiate Athletics Association record, where he averaged 19.1 strikeouts per nine innings.

[01:00:36] And in the 1992 season, whereas Billy Wagner was drafted 12th overall by the Houston Astros in 1993 and made his Major League Baseball debut on September 13, 1995. He would ultimately achieve 225 saves while playing and pitching with the Houston Astros between 1995 and 2003, a franchise record.

[01:01:00] And whereas after the Houston Astros, Billy Wagner pitched for the Philadelphia Phillies from 2004 to 2005, the New York Mets from 2006 to 2009, the Boston Red Sox in 2009, and the Atlanta Braves in 2010.

[01:01:17] Whereas in 2013, Billy Wagner has supported the development of young, aspiring baseball players as head coach of the baseball team at the Miller School of Albemarle, where his legacy in the sport will undoubtedly continue to grow for many years to come.

[01:01:34] Mr. Speaker, ladies and gentlemen of the House, please join me as we welcome Billy Wagner. I am deeply humbled and very honored to be a representative of the Commonwealth of Virginia.

[01:02:00] There's no greater honor. Thank you. Thank you. House will be at ease.

[01:06:23] House will come to order. Mr. Clerk. Mr. Speaker, picking back up House Bill's third reading regular, page 8 of the printed calendar. Next bill coming up on third reading regular, final passage, is House Bill 804, related to statewide housing targets for localities.

[01:06:40] The delegate from Bedford, Delegate Griffin. Mr. Speaker, speaking to the bill. The delegate has the floor. This is one of the package of bills the Democrats are putting forward to put apartment complexes all over the Commonwealth of Virginia. There was this—10 years ago at the World Economic Forum, this Danish politician got up and he said, you will own nothing and you will be happy.

[01:07:05] And the gist of that statement was that they're going to minimize ownership rights and they're going to start moving people into the cities. And their reason for doing so is because they said— you know, climate change, and we got to stop, you know, putting greenhouse gas emissions. And one of the best things that we think we can do is we can throw people into these high-density areas. And we think that Western countries should adopt this model. And so fast forward to today, we have a problem in the United States where people have had a hard time purchasing homes.

[01:07:37] And in fact, both candidates, I think for governor, ran on that. And when Governor Spanberger won, she said, well, one of the things I'm going to do is I'm going to increase housing, which like sounds like a great idea. I am, in fact, a big proponent of increasing housing. But this kind of goes to the social contract of what we're about. I always say, what is the American dream, right? We're battling over that for these 60 days, right? Because we're being told all kinds of things that have always been American are no longer American. We're seeing like all these anti-gun bills, the anti-Christian bills. We're seeing a lot of anti-American things. And so if we're going to figure out what is our social contract, how do all of us that have different

[01:08:16] opinions. How do we live together? What are the things that we can agree on? And I would argue that one of the things that we can agree on, that we would agree on, is if I said, what it means to be an American is to have the American dream. And what is the American dream? I really think most people would say it would be the ability to grow up, get married, and buy your own home. And that way you can raise a family in it. This bill is a mandatory bill on localities to increase

[01:08:49] apartment complexes, which is way different than allowing us to build new homes so that people can purchase one and live in one. It's government. It's like a top-down thing, which we argue over this philosophically a lot because obviously I believe that we should be ground up. This is a top-down mandate, right? So the legislature here is going to tell localities, you have to, you have to build these apartments at 1.5% growth per year every five years until you get to 7.5%.

[01:09:20] And if you look at it over and over again, what are the key words in here? Multifamily residential, increasing the height limits, increasing how many can go on a certain lot, high density housing over and over and over again. And it's not that there isn't a place for that, but to mandate it on the localities, I think is the wrong approach. And it's not lost on me that people that live in cities and live in high-rises are more likely to vote left-wing, and that might be one of the underlying reasons why you would want to push a bill like this.

[01:09:58] It's also not lost on me that people that are able to build a life and buy a home and get married and do all those things are much more likely to vote Republican, and that might be one of the reasons you're putting this bill forward. I'm arguing to you today that mandating zoning changes to the localities is not going to help us achieve the American Dream.

[01:10:21] We should be putting things forward that help people to buy homes, not things that damn them to apartment rentals. I'm against this bill and the whole package of bills that y'all are putting forward to mandate apartment rentals for Virginia citizens. Thank you, Mr. Speaker.

[01:10:40] The delegate from Fairfax, Delegate Helmer. Thank you, Mr. Speaker. Mr. Speaker, speaking to the bill. The delegate has the floor. Mr. Speaker, I think the delegate may have been talking about the wrong bill because the word single-family home appears here an awful lot of times, this is a bill we should get along as Americans on either side of the aisle because it reduces regulatory burdens, increases the number of single-family homes that are built, and makes it easier for Virginians to realize the American dream.

[01:11:08] So as a patriot, as an American, and as someone who aspires for every Virginian to be able to buy their home, I hope it is the will of this body to support this bill. Thank you, Mr. Speaker. Shall the bill pass? You clap when you hit that button.

[01:11:28] Clerk will close the roll. Ayes 63, noes 35. Ayes 63, noes 35. The bill passes. House Bill 816 relates to zoning by right multifamily development.

[01:11:45] Shall the bill pass? Clerk will close the roll. Ayes 64, noes 35.

[01:12:01] Ayes 64, noes 35. The bill passes. Top of page 9 of the printed calendar. House Bill 963 now before you relates to qualifications of voters' right to vote, persons not entitled to vote. Shall the bill pass?

[01:12:25] Clerk will close the roll. Ayes 65, noes 34. Ayes 65, noes 34. The bill passes. House Bill 91, directing the Department of Juvenile Justice to establish standards related to limiting room or cell confinement for minors committed to a juvenile correctional facility report.

[01:12:43] Shall the bill pass? Clerk will close the roll. Ayes 86, noes 12. Ayes 86, noes 12. The bill passes.

[01:12:59] House Bill 181, relates to Affordable Dwelling Unit Program, City of Roanoke. Shall the bill pass? Clerk will close the roll.

[01:13:17] Ayes 93, Noes 5. Ayes 93, Noes 5. The bill passes. Continuing over to page 10, the last bill in this category, House Bill 594. It relates to expedited approval for certain affordable housing developments. Shall the bill pass?

[01:13:39] Clerk will close the roll. Ayes 89, Noes 10. Ayes 89, Noes 10. The bill passes. Continuing with today's calendar, House bills, the category of House bills on secondary uncontested calendar. All the bills have been moved from that uncontested counterblock over to the regular, so nothing in that category.

[01:14:00] So going to the category of House bills on second reading regular, bottom of page 11. First up would be House Bill 187, 187, which seeks to amend and reenact a portion of the Acts of Assembly of 1962, which provided a charter for the city of Virginia Beach, as well as repealing a portion of the Acts of Assembly of 2020, all relating to city council voting districts legislation on county cities and towns with an amendment the delegate from Virginia Beach delegate Converse Fowler thank you mr. speaker I move the committee amendment shall the committee amendment be agreed to all those in favor say aye all those opposed no the committee amendment is agreed to thank you mr. speaker house bill 187 is a

[01:14:39] charter change for the city of Virginia Beach relating to local election districts in direct response to a referendum from the 2025 election in in virginia beach that passed by over 10 000 votes mr speaker i hope that is the will of the body to engross the bill and pass it on to its third reading shall the bill be engrossed and passed the third reading all those in favor say aye all those opposed no the bill's engrossed and passed the third reading now picking up the three that were moved going back to page 10 if you're following that way first up of these uh final three in this category uh house bill 62 uh legislation

[01:15:15] to amend and reenact a portion of the acts of assembly of 1958 which provided a charter for the of the town of Tazewell in Tazewell County relating to a town manager. Delegate from Tazewell County, Delegate Moorfield. Mr. Speaker, members of the House, House Bill 62 is a charter change bill that would authorize the town manager or allow for the town manager to reside outside of the town limits.

[01:15:38] I move to engross the bill and pass it to its third reading. Shall the bill be engrossed and pass the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. House Bill 98, now before you, would repeal Chapter 558 as amended of the Act of Assembly of 1950, which provided a charter for the town of Glenlands in Giles County.

[01:15:56] Legislation also reports on county cities and towns. That is from Giles County, Delegate Ballot. Thank you, Mr. Speaker, members of the House. House Bill 98 is a request by the town of Glenlands in Giles County to repeal the town charter. The bottom line is this has already occurred. The town no longer ceased to function.

[01:16:13] It's been taken over by the county. And so I hope it's the pleasure of the House to engross the bill and pass it on to its third reading. So the bill will be engrossed and passed the third reading. All those in favor say aye. Aye. All those opposed, no. The bill is engrossed and passed the third reading. And top of page 11, last bill in the category, House Bill 657, which provided a new charter, which provides a new charter for the town of Louisa and Louisa County and repeals support for the Acts of Assembly of 1972, which provided a charter for the town of Louisa.

[01:16:38] Legislation support from the committee for county, cities, and towns. Delegate from Hanover, Delegate Fowler. Thank you, Mr. Speaker, members of the House. House Bill 657 is the charter bill for the town of Louisa.

[01:16:54] The previous town of Louisa's charter has been cut down to size, Mr. Speaker, eliminating a number of items that are no longer necessary. The new proposed charter meets all the requirements necessary for the town to fulfill all of their responsibilities, Mr. Speaker.

[01:17:13] And, Mr. Speaker, should I continue on? sure okay mr. speaker the town charter provides for the incorporation in boundaries it requires for a general grant of powers under the Constitution of Virginia this bill provides for the composition and powers of town council provides for the duties of the town attorney I'm skipping over a bunch and skipping over mr. speaker the town will be able to raise revenue and finally the The town elections will be governed by state law, Mr. Speaker.

[01:17:51] Mr. Speaker, I hope it will be the pleasure of the House to engrossed House Bill 6057 and move it on to his third reading. The delegate from Buckingham, Delegate Garrett. Thank you, Mr. Speaker. Would the patron yield for a question? Would the patron yield?

[01:18:10] Mr. Speaker, I withdraw. Shall the bill be engrossed and pass the third reading? All those in favor say aye. All those opposed, no.

[01:18:26] The bill is engrossed and passed the third reading. Mercifully. Mercifully. Ms. Speaker, Memorial Resolution is laying on the speaker's table. That category has already been dispensed with during the morning hour. Therefore, that completes the calendar. Per House Rule 51, the House has returned to the morning hour. Does the clerk have any announcements or communications?

[01:18:44] Yes, sir. The meeting schedule for this afternoon is as follows. It's also available online, so you can look at it that way as well. The Committee on General Laws is meeting a half hour after adjournment of the House, possibly 1.30-ish. They'll be in House Committee Room B on the second floor.

[01:19:02] Once the full committee's finished meeting, then their subcommittee on professions, occupations, administrative process will be meeting. And then once that subcommittee's work is finished, then the general law's housing and consumer protection. So general laws, two of its subs, all on the second floor of House Committee Room B.

[01:19:19] Half hour after adjournment of the House, the committee of labor and commerce will be meeting. They'll be down in the lower level in the House Committee Room A. Once the full committee's finished, then subcommittee number two will work on its docket. Once that subcommittee is done, then subcommittee number three will work its will on their docket.

[01:19:38] So Labor and Commerce and two of its subcommittees, transportation subcommittee, transportation, the innovations is canceled today. So at 4 o'clock, the Public Safety Firearms Subcommittee is meeting. They'll be in the House North Subcommittee on the second floor.

[01:19:55] At 4 o'clock as well, HHS's Social Services Subcommittee will be meeting. They'll be in House Committee Room C, that's Health and Human Services, Social Services at 4. And then as aforementioned previously, hence being aforementioned, the Rural Caucus will be meeting at 5 o'clock.

[01:20:12] And they'll be in the 10th floor committee room. Looking ahead to tomorrow, January 30th, bright and early, 7 a.m., the Committee on Finances, subcommittee number 3, is meeting in the House North subcommittee room on the 2nd floor. Also at 7 a.m., the Privileges and Elections Gubernatorial Appointments Committee will be meeting.

[01:20:33] They're going to be in House Committee Room C. At 9.15, just continuing with that for a moment, the full Committee on Privileges and Elections. So P&E, Gubernatorial Appointments at 7, then the full Committee at 9.15, all that in House Room C on the second floor.

[01:20:49] Going back in time slightly, the County, Cities, and Towns Subcommittee No. 1 is meeting at 7.30. They're in the House Committee Room B on the second floor. At 8 o'clock, the full Committee on Public Safety is meeting in the lower level, House Committee Room A.

[01:21:05] So public safety at 8 a.m. The full Committee on County, Cities, and Towns will be meeting at 9 a.m. House Committee Room B, so that subcommittee will meet first, and then the full Committee. And then the Democratic and Republican caucuses, I believe we're going in at 11 tomorrow.

[01:21:24] So I think the Democratic caucuses will be meeting beforehand, and you can check with your caucus chair, and we'll update the schedule accordingly, 9.30? I mean, sorry, 10.30? 10.15. So the Republican caucus will meet at 10.15 in House Committee Room 2, and the Democratic caucus, likewise, will be meeting at 10.15.

[01:21:41] We'll update the schedule accordingly. Remind you as well that your statements of economic interests are due on Monday to the Conflict of Interest Ethics Advisory Council. I'd kindly ask any of the freshman members who have not had their ceremonials to come meet with me briefly for two seconds down in the well upon adjournment.

[01:22:01] Ms. Speaker, that's all the announcements I have. Delegate from Fairfax, Delegate Watts. Thank you, Mr. Speaker. I rise for an announcement. The Delegate has the floor. Thank you, Mr. Speaker. The subcommittee three of House Finance Committee will not meet bright and early or otherwise tomorrow morning.

[01:22:19] We will update the schedule quarterly. I apologize. The delegate from Newport News, Delegate Price. Yes, thank you, Mr. Speaker. I rise for an announcement. The delegate has the floor. Thank you. The gubernatorial appointment subcommittee will not meet tomorrow, but will meet the next week. And so it'll just be privileges and elections full committee at 915.

[01:22:37] Thank you. Delegate from Alexandria, Delegate Heron. Mr. Speaker, I move that when the House adjourns today, it adjourned to reconvene tomorrow at 11 a.m. Delegate from Alexandria, Delegate Heron moves that when the House adjourns today, it adjourned to reconvene tomorrow at 11 a.m. All those in favor, say aye.

[01:22:52] Aye. Those opposed, no. The motion is agreed to. The Delegate from Alexandria, Delegate hearing. Mr. Speaker, I move that the House do now adjourn. Delegate from Alexandria, Delegate hearing moves that the House do now adjourn. As many in favor, the motion will say aye. Those opposed, no. The motion is agreed to. The House stands adjourned until tomorrow at 11 a.m.



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